

**SUBSTITUTE FOR
HOUSE BILL NO. 5281**

A bill to regulate third-party litigation funding transactions; to require disclosures in those transactions; to establish the responsibilities of litigation funding companies and of attorneys; to require registration of litigation funding companies; to impose fees; to provide for the powers and duties of state governmental officers and entities; to prescribe civil fines and to provide remedies; and to require and allow the promulgation of rules.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. This act may be cited as the "third-party litigation
2 funding transparency act".

3 Sec. 3. As used in this act:

4 (a) "Advertise" means publish or disseminate a written, oral,



1 electronic, or printed communication or a communication by means of
2 recorded telephone messages or transmitted or broadcast on radio,
3 television, the internet, or similar communications media,
4 including audio recordings, film strips, motion pictures, and
5 videos, published, disseminated, circulated, or placed before the
6 public, directly or indirectly, for the purpose of inducing a
7 consumer to enter into a consumer litigation funding.

8 (b) "Charges" means the amount of money to be paid to the
9 consumer litigation funding company by or on behalf of the
10 consumer, above the funded amount provided by or on behalf of the
11 consumer litigation funding company to a consumer. Charges include
12 all administrative, origination, underwriting, or other fees,
13 including interest, no matter how denominated. Charges may not
14 exceed 36% annually.

15 (c) "Commercial litigation financier" means a person in the
16 business of entering into commercial litigation financing
17 agreements with claimants or with lawyers or law firms asserting
18 legal claims on behalf of claimants. Commercial litigation
19 financier does not include either of the following:

20 (i) A nonprofit organization that is exempt from federal income
21 tax under 26 USC 501(c)(3), or the nonprofit organization's
22 funders, if the nonprofit organization represents the claimant on a
23 pro bono basis, which may include an award of attorney fees to the
24 nonprofit organization or a related attorney.

25 (ii) A nonprofit organization that provides funding for
26 litigation without any requirement or expectation that the
27 nonprofit organization will receive any money or financial benefit
28 from the litigation or from a litigant or an attorney or law firm
29 that represents a litigant.



(d) "Commercial litigation financing agreement" means, subject to subdivision (e), and with respect to a civil action or group of civil actions, a written agreement to which either of the following applies:

(i) Both of the following apply to the agreement:

(A) Under the agreement, a third party agrees to provide funds to 1 of the named parties or a law firm affiliated with the action or group of actions.

(B) The agreement creates a direct or collateralized interest in the proceeds of a civil action or group of civil actions, by settlement, verdict, judgment, or otherwise, which interest is based in whole or in part on a funding-based obligation to the action or group of actions or the appearing counsel, any contractual co-counsel, or the law firm of the counsel or co-counsel executed with any of the following:

(I) An attorney representing a party.

(II) A co-counsel in the litigation with a contingent fee interest in the representation of that party.

(III) A third party who has a collateral-based interest in the contingency fees of the counsel or co-counsel firm related in whole or in part to the fees derived from representing that party.

(ii) The agreement, which may include an option, forward contract, futures contract, short position, swap, or similar contract, is substantially similar to a commercial litigation financing agreement.

(e) Commercial litigation financing agreement does not include any of the following:

(i) A consumer litigation funding agreement.

(ii) An agreement by an attorney or a law firm to provide legal



1 services on a contingency fee basis to a claimant or to advance the
2 claimant's legal costs in accordance with the Michigan rules of
3 professional conduct.

4 (iii) A health insurance plan or agreement under which a health
5 insurer, medical provider, or assignee has paid, is obligated to
6 pay, or is owed money for an individual's health care.

7 (iv) A loan made by a financial institution to a claimant or
8 the claimant's attorney or law firm if repayment is not contingent
9 on the outcome of the legal claim or on the outcome of any matter
10 within a portfolio that includes the legal claim and involves the
11 same attorney or law firm or affiliated attorney or law firm.

12 (v) A person with a preexisting contractual obligation to
13 indemnify or defend a party to a legal claim.

14 (f) "Consumer" means a natural person or estate for a decedent
15 with a legal claim.

16 (g) "Consumer litigation funding" means a nonrecourse
17 transaction in which a consumer litigation funding company
18 purchases and a consumer assigns to the company a contingent right
19 to receive an amount of the potential proceeds of a settlement,
20 judgment, award, or verdict obtained in the consumer's legal claim.

21 (h) "Consumer litigation funding company" means a person that
22 enters into a consumer litigation funding contract with a consumer.
23 Consumer litigation funding company does not include any of the
24 following:

25 (i) A family member of the consumer.

26 (ii) A bank, lender, financing entity, or other special purpose
27 entity to which either of the following applies:

28 (A) The person provides financing to a consumer litigation
29 funding company.



(B) A consumer litigation funding company grants to the person a security interest, or transfers to the person any rights or interest, in a consumer litigation funding.

(iii) An attorney or accountant who provides services to a consumer.

(i) "Family member" means a spouse; parent; stepparent; sibling; child by blood, adoption, or marriage; grandchild; grandparent; descendant of a grandparent; or legal guardian.

(j) "Foreign country or person of concern" and "foreign country of concern" mean a country or person that is either of the following:

(i) A foreign government or person listed under 15 CFR 791.4.

(ii) A country designated as a threat to critical infrastructure by the governor.

(k) "Foreign entity of concern" means an entity to which 1 or more of the following apply:

(i) The entity is organized or incorporated in a foreign country of concern.

(ii) The entity is owned or controlled by the government, a political subdivision, or a political party of a foreign country of concern.

(iii) The entity has a principal place of business in a foreign country of concern.

(iv) The entity is owned, organized, or controlled by, affiliated with, or acting on behalf of an individual or entity to which either of the following applies:

(A) The individual or entity has been placed on a sanctions list maintained by the federal Office of Foreign Assets Control, including, but not limited to, any of the following:



1 (I) The Specially Designated Nationals and Blocked Persons
2 List, also known as the SDN list.

3 (II) The Foreign Sanctions Evaders List.

4 (III) The Non-SDN Iran Sanctions Act List.

5 (IV) The Sectoral Sanctions Identifications List.

6 (V) The List of Foreign Financial Institutions Subject to
7 Correspondent Account and Payable-Through Account Sanctions.

8 (B) The individual or entity has been designated by the United
9 States Secretary of State as a foreign terrorist organization.

10 (I) "Funded amount" means the amount of money provided to, or
11 on behalf of, the consumer in a consumer litigation funding
12 contract. Funded amount excludes charges.

13 (m) "Funding date" means the date on which the funded amount
14 is transferred to the consumer by the consumer litigation funding
15 company either by personal delivery or wire, ACH, or other
16 electronic means or is mailed by insured, certified, or registered
17 United States mail.

18 (n) "Legal claim" means a civil claim or cause of action.

19 (o) "Resolution date" means the date the funded amount, plus
20 the agreed-on charges, are delivered to the consumer litigation
21 funding company by the consumer or the consumer's attorney, or
22 otherwise.

23 Sec. 4. (1) A consumer litigation funding contract must meet
24 all of the following requirements:

25 (a) The contract must be written in a clear and coherent
26 manner using words with common, everyday meanings to enable the
27 average consumer who makes a reasonable effort under ordinary
28 circumstances to read and understand the terms of the contract
29 without having to obtain the assistance of a professional.



(b) The contract must be completely filled in when presented to the consumer for signature.

(c) The contract must contain the initials of the consumer on each page.

(d) The contract must contain a statement that there are no fees or charges to be paid by the consumer other than what is disclosed on the disclosure form.

(e) If the consumer seeks more than 1 litigation funding contract from the same company, the contract must contain a statement that provides the cumulative amount due from the consumer for all transactions, including charges under all contracts, if repayment is made any time after the contracts are executed.

(f) The contract must contain a statement of the maximum amount the consumer may be obligated to pay under the contract other than in a case of material breach, fraud, or misrepresentation by or on behalf of the consumer.

(g) The contract must clearly and conspicuously detail how charges, including any applicable fees, are incurred or accrued.

(2) A consumer litigation funding contract must contain the disclosures specified in this subsection, which constitute material terms of the contract. Unless otherwise specified, the disclosures must be typed in at least 12-point bold type font and be placed clearly and conspicuously within the contract, as follows:

(a) On the front page under appropriate headings, language specifying all of the following:

(i) The funded amount to be paid to the consumer by the consumer litigation funding company.

(ii) An itemization of 1-time charges.

(iii) The maximum total amount to be assigned by the consumer to



1 the company, including the funded amount and all charges.

2 (iv) A payment schedule to include the funded amount and
3 charges, listing all dates and the amount due at the end of each
4 180-day period from the funding date, until the date the maximum
5 amount due to the company under the contract is paid.

6 (b) Within the body of the consumer litigation funding
7 contract, language stating all of the following:

8 (i) "Consumer's right to cancellation: you may cancel this
9 contract without penalty or further obligation within ten business
10 days after the funding date if you return to the consumer
11 litigation funding company the full amount of the disbursed funds."

12 (ii) "The consumer litigation funding company will have no role
13 in deciding whether, when, and how much the legal claim is settled
14 for, however, the consumer and consumer's attorney must notify the
15 consumer litigation funding company of the outcome of the legal
16 claim by settlement or adjudication before or on the resolution
17 date. The company may seek updated information about the status of
18 the legal claim but in no event must the company attempt to
19 interfere with, control, or influence the independent professional
20 judgment of the attorney in the handling of the legal claim or any
21 settlement of the legal claim."

22 (iii) In all capital letters in at least 12-point bold type font
23 contained within a box: "THE FUNDED AMOUNT AND AGREED-UPON CHARGES
24 MUST BE PAID ONLY FROM THE PROCEEDS OF YOUR LEGAL CLAIM, AND MUST
25 BE PAID ONLY TO THE EXTENT THAT THERE ARE AVAILABLE PROCEEDS FROM
26 YOUR LEGAL CLAIM. YOU WILL NOT OWE (INSERT NAME OF THE CONSUMER
27 LITIGATION FUNDING COMPANY) ANYTHING IF THERE ARE NO PROCEEDS FROM
28 YOUR LEGAL CLAIM, UNLESS YOU HAVE VIOLATED ANY MATERIAL TERM OF
29 THIS CONTRACT OR YOU HAVE COMMITTED FRAUD AGAINST (INSERT NAME OF



1 CONSUMER LITIGATION FUNDING COMPANY)".

2 (c) Located immediately above the place on the contract where
3 the consumer's signature is required, in 12-point bold type font:
4 "Do not sign this contract before you read it completely. Do not
5 sign this contract if it contains any blank spaces. You are
6 entitled to a completely filled-in copy of the contract before you
7 sign this contract. You should obtain the advice of an attorney
8 before signing this contract. Depending on the circumstances, you
9 may want to consult a tax, public or private benefits planning, or
10 financial professional. You acknowledge that your attorney in the
11 legal claim has provided no tax, public or private benefit
12 planning, or financial advice regarding this transaction. You
13 further acknowledge that your attorney has explained the terms and
14 conditions of the consumer litigation funding contract.".

15 (3) A consumer litigation funding contract must contain a
16 written acknowledgment by the attorney retained by the consumer to
17 pursue the legal claim that attests to all of the following:

18 (a) The attorney has reviewed the disclosures required under
19 subsections (1) and (2) with the consumer.

20 (b) The attorney is, or, if applicable, is not, being paid on
21 a contingency basis under a written fee agreement.

22 (c) All proceeds of the legal claim will be disbursed via
23 either the trust account of the attorney or a settlement fund
24 established to receive the proceeds of the legal claim on behalf of
25 the consumer.

26 (d) The attorney is obligated to disburse funds from the legal
27 claim and take any other steps to ensure that the terms of the
28 litigation funding contract are fulfilled.

29 (e) The attorney has not received a referral fee or other



1 consideration from the consumer litigation funding company in
2 connection with the consumer litigation funding, nor will the
3 attorney receive such a fee or other consideration in the future.

4 (4) If the acknowledgment required under subsection (3) is not
5 provided by the attorney or firm retained by the consumer to pursue
6 the legal claim, the consumer litigation funding contract is void.
7 The consumer litigation funding contract remains valid and
8 enforceable if the consumer terminates the initial attorney or
9 retains a new attorney with respect to the legal claim.

10 (5) A copy of an executed consumer litigation funding contract
11 must be promptly delivered to the attorney retained by the consumer
12 to pursue the legal claim.

13 Sec. 5. (1) A consumer litigation funding company shall not do
14 any of the following:

15 (a) Pay or offer to pay a commission, referral fee, or other
16 form of consideration to an attorney, law firm, health care
17 provider, chiropractor, or physical therapist, or an employee of
18 any of these, for referring a consumer to the consumer litigation
19 funding company.

20 (b) Accept a commission, referral fee, rebate, or other form
21 of consideration from an attorney, law firm, health care provider,
22 chiropractor, or physical therapist, or an employee of any of
23 these.

24 (c) Give money or a gift, pay the cost of travel, or provide
25 anything of value to an attorney or law firm.

26 (d) Intentionally advertise false or misleading information
27 regarding the company's products or services.

28 (e) Refer, in furtherance of an initial legal funding, a
29 customer or potential customer to a specific attorney, law firm,



1 health care provider, chiropractor, or physical therapist, or an
2 employee of any of these. However, if a customer needs legal
3 representation, the company may refer the customer to a local or
4 state bar association referral service.

5 (f) Knowingly provide funding to a consumer who has previously
6 assigned or sold a portion of the consumer's right to proceeds from
7 a legal claim without first making payment for or purchasing a
8 prior unsatisfied consumer litigation funding company's entire
9 funded amount and contracted charges, unless a lesser amount is
10 otherwise agreed to in writing by the consumer litigation funding
11 companies, except that multiple companies may agree to
12 contemporaneously provide funding to a consumer if the consumer and
13 the consumer's attorney consent to the arrangement in writing.

14 (g) Make any decision, have any influence, or direct any
15 decisions with respect to the course of a legal claim, including
16 decisions in appointing or changing counsel, choice or use of
17 expert witnesses, litigation strategy, and settlement or other
18 resolution. The right to make all decisions regarding a legal claim
19 must remain solely with the claimant and the claimant's attorney or
20 law firm.

21 (h) Attempt to obtain a waiver of any remedy or right by the
22 consumer, including, but not limited to, the right to bring a civil
23 action in court and the right to have a civil action tried by a
24 jury. A consumer litigation funding contract must not contain a
25 provision requiring arbitration of any dispute.

26 (i) Knowingly pay or offer to pay for court costs, filing
27 fees, or attorney fees either during or after the resolution of the
28 legal claim, using funds from the consumer litigation funding
29 transaction.



1 (2) If a consumer litigation funding company exercises or
2 attempts to exercise any control or influence over a consumer's
3 claim that is not prohibited by subsection (1) or another provision
4 of this act, the consumer litigation funding company shall act as a
5 fiduciary with respect to the consumer's claim. Acting as a
6 fiduciary under this subsection requires all of the following:

7 (a) Acting in the best interests of the consumer, not the
8 consumer litigation funding company, including by avoiding any
9 conflicts of interest.

10 (b) If the consumer litigation funding company has custody of
11 any money of the consumer or pays out money on behalf of the
12 consumer, keeping or paying out the money carefully and with
13 diligence, not commingling the consumer's money with that of the
14 consumer litigation funding company, and keeping detailed and
15 accurate records.

16 (3) Notwithstanding any other provision of law, a prepayment
17 penalty or fee must not be charged or collected in connection with
18 a consumer litigation funding transaction. A prepayment penalty or
19 fee in a consumer litigation funding transaction is unenforceable.

20 (4) An attorney or law firm retained by a consumer to pursue a
21 legal claim shall not have a financial interest in a consumer
22 litigation funding company that offers consumer litigation funding
23 to the consumer.

24 (5) An attorney who has referred a consumer to the consumer's
25 retained attorney shall not have a financial interest in a consumer
26 litigation funding company that offers consumer litigation funding
27 to the consumer.

28 (6) An attorney shall not disclose confidential or privileged
29 information to a consumer litigation funding company without the



1 written consent of the consumer and in accord with any order of the
2 court in the litigation.

3 (7) A consumer litigation funding company shall not enter into
4 a consumer litigation funding contract directly or indirectly with
5 a foreign entity of concern or a foreign country or person of
6 concern.

7 Sec. 6. The contracted amount to be paid to a consumer
8 litigation funding company must be a predetermined amount based on
9 intervals of time from the funding date through the resolution
10 date, and must not be determined as a percentage of the recovery
11 from the legal claim.

12 Sec. 7. (1) Not later than 30 days after a written request, a
13 consumer shall disclose to any party to a legal claim and each
14 insurer that has a duty to defend whether the consumer has entered
15 into a consumer litigation funding contract.

16 (2) If a consumer enters into a consumer litigation funding
17 contract after responding to a request under subsection (1), the
18 consumer has a continuing obligation to disclose and shall disclose
19 this fact to the requesting person not later than 30 days after the
20 consumer enters into the contract.

21 (3) A consumer litigation funding contract, and all
22 participants or parties to the consumer litigation funding
23 contract, are presumed to be discoverable in a civil proceeding,
24 notwithstanding any agreement or provision with respect to
25 confidentiality. A consumer may seek to rebut this presumption.

26 (4) A consumer litigation funding transaction disclosed under
27 subsection (1) or (2) or a consumer litigation funding contract
28 discovered under subsection (3) are presumed to be inadmissible as
29 evidence. A party may seek to rebut this presumption.



1 Sec. 8. (1) Both of the following apply to a consumer
2 litigation funding company that violates any provision of this act
3 in a specific funding case:

4 (a) The company waives its right to recover both the funded
5 amount and any and all charges in the case.

6 (b) The company is liable for a civil fine of not more than
7 \$10,000.00 for each violation. A fine under this subdivision may be
8 recovered in a civil action brought by the attorney general.

9 (2) In an action by a consumer against a consumer litigation
10 funding company for a violation of this act, a prevailing consumer
11 is entitled to an award of an amount equal to 3 times the total of
12 the funded amount and any and all charges, or \$10,000.00, whichever
13 is greater. An award under this subsection is not subject to an
14 offset for any amount that would otherwise be owed by the consumer
15 to the consumer litigation funding company.

16 (3) This act does not restrict the exercise of powers of the
17 attorney general.

18 Sec. 9. (1) The contingent right to receive an amount of the
19 potential proceeds of a legal claim is assignable by a consumer to
20 a consumer litigation funding company.

21 (2) Only an attorney's lien related to the legal claim that is
22 the subject of the consumer litigation funding or Medicare or other
23 statutory liens related to the legal claim take priority over a
24 lien of the consumer litigation funding company.

25 Sec. 10. Communications between a consumer's attorney and a
26 consumer litigation funding company to allow the consumer
27 litigation funding company to ascertain the status of a legal claim
28 or a legal claim's expected value is not discoverable by a person
29 against which the legal claim is asserted or filed.



1 Sec. 11. (1) Subject to subsection (8), unless a consumer
2 litigation funding company or commercial litigation financier has
3 first registered with this state under this act, the company or
4 financier shall not engage in the business of consumer litigation
5 funding or commercial litigation financing agreements in this
6 state.

7 (2) An application for registration under this section must be
8 filed in the manner prescribed by the department of insurance and
9 financial services and must contain all the information required by
10 the department of insurance and financial services to make an
11 evaluation of the character and fitness of the applicant company or
12 financier, including, but not limited to, any beneficial ownership
13 interest exceeding 20%. The initial application must be accompanied
14 by a fee of \$10,000.00. A renewal registration must include a fee
15 of \$10,000.00. A registration must be renewed every 2 years and
16 expires on December 31.

17 (3) A certificate of registration may not be issued unless the
18 department of insurance and financial services on investigation
19 finds that the character and fitness of the applicant company or
20 financier, and of the officers and directors of the company or
21 financier, are such as to warrant belief that the business will be
22 operated honestly and fairly within the purposes of this act.

23 (4) The department of insurance and financial services shall
24 not issue a registration under this section to a foreign entity of
25 concern or a foreign country or person of concern.

26 (5) An applicant under this section shall also, at the time of
27 filing the application, file with the department of insurance and
28 financial services, if the department of insurance and financial
29 services so requires, a bond satisfactory to the department of



1 insurance and financial services in an amount not to exceed
2 \$10,000.00. At the option of the applicant, instead of a bond, the
3 applicant may post an irrevocable letter of credit. The terms of a
4 bond filed under this subsection must run concurrent with the
5 period during which the registration will be in effect. The bond
6 must provide that the registrant will faithfully conform to and
7 abide by this act and all rules promulgated under this act and will
8 pay to this state or any other person any amount of money that
9 becomes due to this state or to the person from the registrant
10 under this act during the period for which the bond is given.

11 (6) On written request, an applicant under this section is
12 entitled to a hearing on the question of the applicant's
13 qualifications for registration if either of the following applies:

14 (a) The department of insurance and financial services has
15 notified the applicant in writing that the application has been
16 denied.

17 (b) The department of insurance and financial services has not
18 issued a registration within 60 days after the application for the
19 registration was filed.

20 (7) A request for a hearing under subsection (6) may not be
21 made later than 15 days after the department has mailed a written
22 notice to the applicant that the application has been denied and
23 that states in substance the department of insurance and financial
24 services' findings supporting denial of the application.

25 (8) A consumer litigation funding company or commercial
26 litigation financier that registered with the department of
27 insurance and financial services after the effective date of this
28 act or the date on which the department of insurance and financial
29 services makes applications for registration under this section



1 available to the public, whichever is later, and before 180 days
2 after that date may engage in consumer litigation funding or
3 commercial litigation financing, as applicable, while the company's
4 application for registration under this section is pending approval
5 with the department of insurance and financial services. A funding
6 agreement entered into before the effective date of this act is not
7 subject to this act.

8 (9) A person shall not use any form of consumer litigation
9 funding contract or commercial litigation financing agreement in
10 this state unless it has been filed with the department of
11 insurance and financial services in accordance with the filing
12 procedures set forth by the director of insurance and financial
13 services. The filing procedures must designate a reasonable time
14 frame for this state to raise objections to any filed form.

15 (10) The director of the department of insurance and financial
16 services shall annually adjust the amount of the fees to be paid
17 under subsection (2) to reflect the change in the Consumer Price
18 Index in the preceding calendar year. The first adjustment under
19 this subsection must be made for fees to be paid in the calendar
20 year after the year in which this act takes effect. As used in this
21 subsection, "Consumer Price Index" means the annual average
22 Consumer Price Index for All Urban Consumers (CPI-U), all items in
23 U.S. city average, reported by the Bureau of Labor Statistics of
24 the United States Department of Labor.

25 Sec. 12. (1) A consumer litigation funding company or
26 commercial litigation financier that engages in business in this
27 state shall submit a report to the department of insurance and
28 financial services not later than December 31 of each year that
29 specifies all of the following:



1 (a) The number of litigation fundings by the company or
2 financier that year.

3 (b) A summation of funded amounts in dollars for that year.

4 (c) The annual percentage charged to each consumer or
5 commercial funding recipient if repayment was made that year.

6 (2) The department of insurance and financial services shall
7 make information received under this section available to the
8 public, in a manner that maintains the confidentiality of the name
9 of the companies, financiers, customers, and consumers, not later
10 than 30 days after the reports are submitted.

11 Sec. 13. (1) A commercial litigation financier shall not enter
12 into a commercial litigation financing agreement directly or
13 indirectly with a foreign entity of concern or a foreign country or
14 person of concern.

15 (2) A claimant or an attorney or law firm for a claimant or
16 affiliated attorney or law firm shall not disclose or share any
17 documents or information with a commercial litigation financier if
18 the documents are or the information is subject to a protective or
19 sealing order from a court.

20 (3) A commercial litigation financier shall not make any
21 decision, have any influence, or direct any decisions with respect
22 to the course of a legal claim, including decisions in appointing
23 or changing counsel, choice or use of expert witnesses, litigation
24 strategy, and settlement or other resolution. The right to make all
25 decisions regarding a legal claim remains solely with the claimant
26 and the claimant's attorney or law firm.

27 Sec. 14. (1) Except as otherwise stipulated or ordered by the
28 court, a claimant or the claimant's attorney shall, without
29 awaiting a discovery request, provide to all parties any commercial



1 litigation financing agreement at the time a legal claim is
2 asserted or commenced and any time thereafter that a commercial
3 litigation financing agreement is executed or amended. An insurer
4 that has or may have a duty to defend or indemnify a party to a
5 legal claim must be provided with the commercial litigation
6 financing agreement or any modifications or amendments to the
7 agreement.

8 (2) A commercial litigation financing agreement and all
9 participants or parties to the commercial litigation financing
10 agreement are permissible subjects of discovery in a legal claim.

11 Sec. 15. The department of insurance and financial services
12 may promulgate rules necessary to effectuate the purposes of this
13 act under the administrative procedures act of 1969, 1969 PA 306,
14 MCL 24.201 to 24.328.

15 Sec. 16. This act applies to a consumer litigation funding or
16 commercial litigation financing agreement that is effectuated on or
17 after the effective date of this act.